Lakh Narayan And 16 Others vs State Of U.P. And 17 Others on 11 January, 2024

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2024:AHC:5903

Court No. - 49

Case :- WRIT - B No. - 3741 of 2023

Petitioner :- Lakh Narayan And 16 Others

Respondent :- State Of U.P. And 17 Others

Counsel for Petitioner :- Rudra Pratap Singh,Rituvendra Singh Nagvanshi,Sr. Advocate

Counsel for Respondent :- C.S.C.,Desh Ratan Chaudhary

Hon'ble Chandra Kumar Rai,J.

1. Heard Sri R.C. Singh, learned Senior Counsel, assisted by Sri Rituvendra Singh Nagvanshi, learned counsel for the petitioners, Sri Desh Ratan Chaudhary, learned counsel, appearing for respondent No. 3 and Mr. Ashutosh Kumar Rai, learned Additional Chief Standing Counsel for the State-respondents.

2. Brief facts of the case are that matter relates to title under Section-9A (2) of U.P. Consolidation of Holding Act, 1953, (hereinafter will be referred as U.P.C.H. Act). The family pedigree of the parties to the dispute will be relevant which is as under:-

B h a w a n i
_____|_____
S h i v N a n d a n S h i v R a t a n |
_____|_____
| | | | Ayodhya Gajroop Rajroop Gajadhar | | | | Manohar Bhisham Nand Kishor Ram Abhilash | _____|_____ | | Ram Achal Ram Chand Shiv Chand Ram Taukal Ram Nath _____|_____ |
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_____|_____ | Umashankar | | | | | | | | (resp. no.3) | | | | | | | | | | | | | | |_____ |_____| Ramshakal Ramkisan Gayatri Lalchand Gulabchand Gulabdas Hiralal Lakh Narayan Raj Narayan Dharam Raj | | | (pet. No.1) (pet. No.2) (pet. No.3) | Rajesh Umesh _____ _____|_____ Shiv Shaym Aruna Devi or Narayan Narayan Asha Devi According to the pedigree which is admitted to both parties petitioners are from the branch of Shiv Nandan and contesting respondents are from the branch of Shiv Ratan. According to the petitioner their predecessor was recorded up to 1375 fasli in respect to plot of Khata No. 26 along with contesting respondents, but in the Khatauni of 1386 Fasli the name of the petitioner's predecessor was omitted without any order of any Court. Before Consolidation Suit under Section-229B of U.P.Z.A & L.R. Act/176 of U.P.Z.A. & L.R. Act 1950, was filed which was ultimately abated due to consolidation operation intervened in the village. An objection under Section-9A (2) of U.P.C.H. Act was filed on behalf of petitioner Nos. 1, 2 and 3 separately against the basic year entry in respect to plot of Khata No. 7, 67, 78, 107, 108, 109 & 110 situated in village Sothiya Khurd, Tappa- Upraudh, Pargana-Kantit, Tehasil- Lalganj, District- Mirzapur, stating that land in dispute is ancestral property, but the name of their predecessor was wrongly omitted without any order of the court although petitioner and contesting are continuing their respective possession and both parties have executed sale-deed in respect part of their share. Opposite parties have put in appearance & filed their objection. Consolidation officer framed six issues in the case. Both parties have adduced oral and documentary evidence in support of their cases. Consolidation officer vide order dated 18.12.2021 allowed the objection of the petitioner & rejected the claim/objection of the opposite parties/ contesting respondents holding the plot in dispute are ancestral property and petitioners as well as their vendees are entitled to be recorded along with opposite parties/contesting respondents. Correction application filed against the order dated 18.12.2021 was allowed vide order dated 03.02.2022. Against the order of consolidation officer dated 18.12.2021 Appeal No. 524 & 525 were filed under Section-11 (1) of U.P.C.H. Act on behalf of contesting respondents which were heard together and the same were dismissed vide order dated 18.04.2023. Against the appellate order dated 18.04.2023 contesting respondents filed revision No.-690 of 2023 under Section-48 of U.P.C.H. Act before Deputy Director of Consolidation, which was heard & allowed vide order dated 16.10.2023 setting aside the orders dated 18.12.2021 and 18.04.2023 and matter was remanded back before Consolidation Officer for fresh trial hence this writ petition for following relief:-

"i) Issue a writ, order or direction in the nature of certiorari calling for record and quash the order dated 16.10.2023 (Annexure No. 8) passed by respondent No. 2 in Revision No. 690/2023 Computerized No. 202354165300000487 (Umashanker etc. vs. Lak Narayan etc), under Section 48 of the U.P. Consolidation of Holdings Act, 1953, village Sothiyakhurd, Tappa--Upraudh, Pargana-Kantit, Tehsil-Lalganj, District Mirzapur.

ii) Issue a writ, order or direction in the nature of mandamus interdicting the contesting-respondents from interfering into peaceful possession of the petitioners and changing the nature of land in dispute.

iii) Issue any other suitable writ, order or direction which this Hon'ble may deem fit and proper in the circumstances of the case".

3. A caveat has been filed on behalf of respondent No. 3 who has filed his counter affidavit and petitioners have filed their rejoinder affidavit.

4. Learned Senior Counsel for the petitioners submitted that title objection filed at the instance of the petitioners against the basic year entry was allowed by the Consolidation Officer after framing issues and giving parties to lead evidence in accordance with law. He further submitted that correction application filed against the order of the Consolidation Officer at the instance of the petitioners/objector was also allowed in accordance with law. He further submitted that allowing the correction application by Consolidation Officer does not prejudice the claim of the contesting respondents in any manner. He further submitted that the title appeal under Section 11 (1) of the U.P.C.H. Act has also been dismissed by the appellate court in accordance with law. He further submitted that revision under Section 48 of the U.P.C.H. Act filed at the instance of contesting respondents has been all1owed and the matter has been remanded before the Consolidation Officer for de-novo trial, which is against the provision contained under Section 48 Explanation-3 of U.P.C.H.Act. He further submitted that claim of the contesting respondent, if any, can be decided by the Deputy Director of Consolidation himself rather to remand for de-novo trial. He further submitted that the impugned order is liable to be quashed as Petitioner Nos. 4 to 14 were not impleaded in the revision although they were parties before Consolidation Officer and Settlement Officer Consolidation.

5. On the other hand, Sri Desh Ratan Chaudhary learned counsel for contesting respondents submitted that contesting respondents were rightly recorded in the basic year of the consolidation operation. He further submitted that the trial was not conducted in proper manner before the Consolidation Officer and no proper opportunity of hearing was afforded to the respondents before making amendment in the earlier order. The revisional court has remanded the matter back for fresh trial in accordance with law which require no interference. He further submitted that allowing of subsequent application by the Consolidation Officer is not permissible as the Consolidation Court has no jurisdiction to review the matter, therefore, no interference is required against the impugned revisional-order and Consolidation Officer be directed to decide the dispute in pursuance of the revisional order in accordance with law.

6. I have considered the arguments advanced by learned counsel for the parties and perused the record.

7. There is no dispute about the fact that objection under Section 9A (2) of U.P.C.H. Act filed at the instance of the petitioners has been allowed by the Consolidation Officer, and the order of Consolidation Officer has been maintained in appeal also. There is no dispute about the fact that the

revision under Section 48 of the U.P.C.H. Act filed at the instance of the contesting respondents has been allowed and the matter has been remanded back before the Consolidation Officer for fresh trial.

8. In order to appreciate the controversy involved in the matter, it is necessary to peruse the Section 48 of the U.P.C.H. Act which reads as under:-

> "[48. Revision and reference. - (1) The Director of Consolidation may call for and examine the record of any case decided or proceedings taken by any subordinate authority for the purpose of satisfying himself as to the regularity of the proceedings; or as to the correctness, legality or propriety of any order] [other than an interlocutory order] passed by such authority in the case or proceedings, may, after allowing the parties concerned an opportunity of being heard, make such order in the case or proceedings as he thinks fit.
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> (2) Powers under sub-section (1) may be exercised by the Director of Consolidation also on a reference under sub-section (3).
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> (3) Any authority subordinate to the Director of Consolidation may, after allowing the parties concerned an opportunity of being heard, refer the record of any case or proceedings to the Director of Consolidation for action under sub-section (1).

[Explanation. -] [(1)] For the purposes of this section, Settlement Officers, Consolidation, Consolidation Officers, Assistant Consolidation Officers, Consolidator and Consolidation Lekhpals shall be subordinate to the Director of Consolidation.

Explanation (2) - For the purposes of this section the expression 'interlocutory order' in relation to a case or proceeding, means such order deciding any matter arising in such case or proceeding or collateral thereto as does not have the effect to finally disposing of such case or proceeding.

[Explanation (3). - The power under this section to examine the correctness, legality or propriety of any order includes the power to examine any finding, whether of fact or law, recorded by any subordinate authority, and also includes the power to re-appreciate any oral or documentary evidence.]"

9. In view of the provisions contained under Section 48 Explation-3 of the U.P.C.H. Act, further remand by the revisional court for fresh trial is against the provisions contained under Section 48 of the U.P. Consolidation and Holding Act as Consolidation Officer has already conducted trial after framing issues and giving parties to lead evidence in accordance with law.

10. This Court in the case reported in 2019 (143)RD 370 Ram Laxman and another vs. Deputy Director of Consolidation and others has considered the scope of Section 48 Explanation-3 and has held that revisional court in view of the provision contained under Section 48 Explanation-3 of U.P.C.H. Act should not remand the matter for fresh trial rather revisional court should himself

decide the controversy. Paragraph No.- 6,11 and 12 of the judgment rendered in Ram Laxman (supra) are relevant for perusal which as under:-

> "6. It is contended that in view of the provisions contained in proviso 3 to Section 48 of the U.P. Consolidation of Holdings Act. The Deputy Director of Consolidation is the last Court of fact, who is competent to record findings both on facts and on law contrary to those recorded by the subordinate consolidation authorities.

11. I find substance in the contention of Counsel for the petitioner regarding the revisional Powers and that the Deputy Director of Consolidation is a Court of fact, competent to record findings, both on question of fact and on law, contrary to those recorded by the subordinate Courts upon appreciating of the evidence both oral and documentary, that may be available on record.

12. Accordingly, I allow the writ petition in part and set aside the order dated 26.11.2018 to the extent it remand the matter to the Consolidation Officer. This portion of the impugned order is modified and the Deputy Director of Consolidation is directed to decide the matter himself after getting the lower Court record reconstituted and after permitting the parties to adduce any further evidence that they may wish to adduce, both oral and documentary and after hearing parties".

11. This Court in another case reported in 2020 (148) RD 114 Smt. Lakashmania (dead) through L.Rs. vs. Deputy Director of Consolidation Deoria and others have considered the scope of Section-48 Explanation-3 of U.P.C.H. Act in paragraph No. 44 of the judgment which reads as under:-

> "44. In this case, the objection were filed in the year 1981, and, therefore, the amended provision are section 48, operative retrospectively, would squarely apply. Under the amended statute, the Revisional Court has been conferred with unique powers by virtue of the added Explanation 3 to go into the correctness, legality or propriety of an order passed by an Authority below, whether on fact or law, and includes the powers to appreciate any oral or documentary evidence. Thus, to the understanding of this Court, in view of the added Explanation by U.P. Act No. 3 of 2002, retrospectively w.e.f. 10.11.1980, the Revisional Court is in no manner inhibited from examining any question of fact or law, or appreciating evidence whether documentary or oral, virtually like any other Court of fact and law. It is a unique position that the Revisional Authority enjoys, under section 48 of the Act, conventionally not associated with the exercise of revisional jurisdiction".

12. Considering the entire facts and circumstances of the case, the impugned revisional order dated 16.10.2023 passed by respondent No. 2/Deputy Director of Consolidation, Mirzapur can not be sustained in the eye of law and the same is hereby set aside.

13. The writ petition is accordingly allowed in part. The matter is remanded back before respondent No. 2/Deputy Director of Consolidation, Mirzapur, to register the revision on its original number and decide the same in accordance with law after affording proper opportunity of hearing to the

parties, expeditiously, preferably, within a period of three months from the date of production of a certified copy of this order. It is further directed that the revisionist shall take steps to implead all the necessary parties in the revision, who were impleaded before Consolidation Officer as well as Settlement Officer Consolidation.

14. This order has been passed without issuing notice to other respondents as such they can file recall application before this Court if, they have any grievance against the order. It is made clear that revisional court will afford the opportunity to all the parties in the revision.

Order Date :- 11.1.2024 v.k.updh.